**ON THE AIMS AND OBJECTIVES OF**
**AMERICANS AGAINST NO-FAULT DIVORCE**

Americans Against No-Fault Divorce (ANF) is an association of individuals interested in family-first social policies. We are attempting to incentivize the continuance of marriage while discouraging our rampant, unchecked, and uncontrolled divorce culture. We have no desire to eliminate civil divorce entirely. Nor do we have any current agenda to repeal mutual no-fault divorce. We are only interested in the full and complete repeal of unilateral no-fault divorce.

Recognizing that divorce is the legal cause of action underlying custody and property allocation disputes, we seek to address the heart of the matter – divorce laws that enable the dissolution of marriage for any reason and for no reason at all. Unilateral no-fault divorce cannot be considered the legal "regulation" of marriage/divorce but rather the *carte blanche* grant of divorce without limitation. Not only does divorce-on-demand reflect the gross irresponsibility of our state governments in regulating marriage/divorce, but this cannot be considered "regulation" at all. Under this system, divorce becomes an administrative, guaranteed, and forced action rather than a judicial action, and we believe this is problematic for many reasons, not least of which is the question of constitutionality.

We recognize that according to American jurisprudence, state governments retain "police powers" to regulate the civil status of marriage and divorce. However, it is our position that unilateral no-fault divorce is not only an abuse of these police powers, but a complete abdication of them. By installing a unilateral no-fault divorce regime, the state governments have relinquished their role as guardians of the civil institution of marriage and have instead become unfriendly and hostile actors against marriage and the family. It is our position that with the introduction of unilateral no-fault divorce, state governments have effectively abolished the civil institution of marriage since marriage has now become the legal equivalent to dating and courtship granting one spouse the legal authority to leave their marriage at any time and for any reason. The state has thus become the greatest threat to the American family and the primary cause of social instability and unrest which we are witnessing today.

The loss of familial identity as a result of widespread divorce has led to a major identity crisis for individuals, communities and the nation as a whole. As a result of the disintegration of strong social ties including the loss of identity formerly inherited and developed within family relationships, the atomistic individual has decided to create their own identity through the force of their own isolated will. This takes the form of self-identifying name changes, pronoun preferences, sexual orientations, physical mutilations, biological alternations, gender dysphoria, and subjective speech. The quick, easy and free divorce culture enabled by [unilateral] no-fault divorce laws has now led to the disintegration of social coherence that is required and necessary for a stable social order.

Fundamentally, no-fault divorce fails to regulate the ***conduct*** of married spouses and instead endorses the particular ***viewpoint*** of a single party who alleges that their marriage has become irretrievably broken. Not only is this instinctually repugnant and unjust for the majority of Americans, but we consider this type of legislation to be viewpoint-based discrimination in violation of the State and U.S. Constitutions.

We are fighting a three-front culture war. FIRST, we are trying to make a change in the state legislatures and demand an end to the unilateral no-fault divorce regime. SECOND, we are fighting in the courts by challenging no-fault laws as unconstitutional and void on the basis that they are viewpoint-based statutes. THIRD, we are not only trying to change the laws, but also trying to change the culture and psychology of our nation as well, which involves the articulation of the purpose and value of marriage and the education of the social ills produced by no-fault divorce.

We believe that the primary opposition interfering with our agenda is the community of "family" and divorce lawyers who make unlimited profit from divorce and the incidental conflicts that arise from divorce such as custody and property allocation. (1) no-fault divorce ensures lawyers a guaranteed source of income, and (2) by inflaming custody/property disputes, divorce lawyers can increase their billable hours. Republican versus Democrat matters not. If they are divorce attorneys, the vast majority are in support of the no-fault regime. These "family" lawyers then become judges and politicians who preserve the system they created to begin with. In point of fact, no-fault divorce was never advanced by the American people. It was promoted and lobbied for by the Family Law Section of the respective State Bar Associations. Their propaganda machine has also become a well-oiled machine, convincing Americans that their unilateral no-fault divorce regime is advantageous to us and that it somehow replaces "ancient" and outdated divorce laws, despite history telling us a much different story. It is our aim to bring attention to all of these dynamics so that others will understand the issue and help us eliminate the no-fault regime once and for all.